



POLICE DEPARTMENT

July 21, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jason Treglia
Tax Registry No. 926222
48 Precinct
Disciplinary Case No. 83672/08

The above-named member of the Department appeared before me on March 27, 2009, charged with the following:

1. Said Police Officer Jason Treglia, assigned to the 48 Precinct, while on duty, at about 0845 hours on July 28, 2006, in front of [REDACTED], Bronx County, did abuse his authority as a member of the New York City Police Department in that he searched the car of an individual known to this Department, without having a legal basis to do so.

P.G. 203-10, Page 1, Paragraph 4 – ABUSE OF AUTHORITY

2. Said Police Officer Jason Treglia, assigned to the 48 Precinct, while on duty, at the date, time and location in Specification #1, did abuse his authority as a member of the New York City Police Department in that he arrested an individual known to this Department, without having probable cause to do so.

P.G. 203-10, Page 1, Paragraph 4 – ABUSE OF AUTHORITY

3. Said Police Officer Jason Treglia, while assigned to the 48 Precinct, while on duty, at the date, time and location in Specification #1, did fail and neglect to follow the procedures for processing controlled/substance marijuana weighing less than eight ounces, as required, to wit: Respondent claimed that he recovered a plastic bag in a car containing what appeared to be marijuana, and failed to voucher it. *(As amended)*

P.G. 218-24, Pages 1 to 3 – PROCESSING CONTROLLED
SUBSTANCE/MARIJUANA

The Department was represented by Nancy Lichtenstein, Esq., Department Advocate's Office, and the Respondent was represented by John P. Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that the Respondent, assigned to the 48 Precinct, was on duty and in uniform on July 28, 2006, assigned to a foot post, and that at about 8:45 a.m. the Respondent approached James Bryant who was holding keys and a cell phone as he stood next to an SUV which was parked across the street from [REDACTED] the Bronx.

The Department's Case

The Department called James Bryant as its only witness.

James Bryant

James Bryant, who resides in [REDACTED], and has been employed as a dispatcher for United Parcel Service for the past two years, testified that during July, 2006, he was employed as the driver for "an entertainment lawyer," a job he

performed for about five years. The SUV in which he drove the attorney was a Ford Excursion truck that had been custom designed and converted into a limousine. A divider between the front and rear seating areas had been installed in this SUV. Because the SUV was registered to the attorney, the attorney's name and address were on the vehicle's DMV registration card. Sometimes the attorney was accompanied in the SUV by friends or security personnel. At times when the attorney did not need to be driven anywhere, he allowed Bryant to use the vehicle for personal purposes. Bryant drove the vehicle every day.

On the morning of July 28, 2006, Bryant was free to use the vehicle for personal errands. Bryant drove the SUV to his [REDACTED]'s house in [REDACTED] and, at about 8:45 a.m., he parked the SUV on [REDACTED]. Bryant stayed at his [REDACTED]'s house for about one half hour and then went outside to move the SUV. He had been standing next to the SUV for about five minutes holding his car keys in his hand as he checked the voice mail on his cell phone, when he was approached by two uniformed police officers. One asked him if he could put the cell phone down and then asked him what he was doing. Bryant asked if there was anything he could help them with. The officer told him that there had been robberies in the neighborhood and that Bryant looked suspicious. He told Bryant to get off the phone. After Bryant got off the phone, the officer asked him if he had anything on him that could harm the officer. The officer then asked Bryant, who was standing beside of the SUV, to place his hands on the car and he proceeded to frisk Bryant. The officer kept asking Bryant, "Are you nervous? Why are you nervous?" Bryant responded that he had "followed everything you asked me to do" and that he had

placed his hands on the car as directed. Bryant testified that the officer then asked him, "Is this your car?" Bryant responded, "That is my car."

When the officer then asked him if he had "all the paperwork for the car," Bryant told the officer that the vehicle information was inside the SUV behind "the back of the seat" because "the information fell in an awkward place." Bryant told the officer that to get the vehicle information he was going to have to reach behind the seat. Bryant noticed that both officers then "seemed nervous." Bryant opened the passenger side front door, got into the car, kneeled on the seat and reached behind the seat. As he did this, he saw the officer open the rear door on the driver's side of the car, lean into the interior of the car and look around the interior of the car. Bryant asked the officer, "Do you have a right to search the vehicle? I am getting the information." The officer then told Bryant, "Step out of the car." After Bryant stepped out of the car, the officer handcuffed him. Bryant asked the officer, "Did I do anything wrong?" The officer then told Bryant, "No, you are acting nervous." The officer then asked Bryant if he used the SUV as a livery cab. Bryant told the officer, "No it is a personal truck and I use the truck for work." The officer took his car keys and Bryant was transported to the 48 Precinct. There, Bryant was issued a summons for Disorderly Conduct and released from custody. Bryant memorized the officer's shield number and his name tag, which was Treglia. Bryant filed a complaint with the Civilian Complaint Review Board (CCRB) "that week, possibly." When Bryant appeared in court, the Disorderly Conduct summons was dismissed. When Bryant was asked whether there were "a lot of people in the area" when the Respondent approached him, he answered, "there were a few scattered people going to work."

On cross-examination, Bryant testified that he has never smoked marijuana and

that neither the attorney, nor any of his friends or security personal that were in the car with him, had ever smoked marijuana, or even cigars or cigarettes, inside the car. He described the two uniformed officers as a Caucasian male and a "possibly Hispanic" male, but he was not certain. The nearest intersection to where he parked the SUV on [REDACTED] was [REDACTED]. Bryant recalled that his [REDACTED] had resided in that area since before Bryant was born. At that time, Bryant lived in the [REDACTED].

He first spotted the officers when they were walking toward him. Only the Respondent spoke to him and he told him that they were investigating robberies in the neighborhood. When Bryant was asked if the Respondent had told him that he resembled someone who had been involved in robberies in the neighborhood, Bryant answered, "Possibly." When the Respondent asked to see the registration and insurance card for the car, Bryant told him that to get the vehicle information he had to reach under the seat to get this paperwork. Bryant walked around the SUV and reentered the SUV through the passenger side front door. The Respondent opening the rear door on the driver's side of the car, leaned into the interior of the car and looked around but he did not get in the SUV. When Bryant asked the Respondent whether he had a right to search the vehicle, he told Bryant to step out of the car and he handcuffed him.

The Respondent called for back up. Bryant was transported to the 48 Precinct about five minutes later. When Bryant was asked why the vehicle's registration was stored behind a seat rather than in glove compartment of the car, he responded, "I don't know." Bryant was in custody for about one half hour at the 48 Precinct before he was handed the summons for Disorderly Conduct and released from custody.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent recalled that at roll call on July 28, 2006, he was informed that a robbery had been committed at 8:45 a.m. the previous day on his solo foot post. Since the description of the perpetrator, male black, 180 to 200 pounds, age 25 to 30, matched that of prior robberies in the area, the robbery appeared to part of a pattern. The Respondent testified that he approached Bryant because he fit the description of the perpetrator. He told Bryant that he matched the description of the perpetrator. Because he feared that Bryant might have a weapon on him, he told him to place his hands on top of the SUV and he patted him down. The Respondent had to order Bryant five or six times to keep his hands on the car since Bryant kept lifting his hands off of the car as he was being frisked. Bryant stated that he did not own the SUV. He told the Respondent that he was not sure where the SUV's vehicle information was inside the car. When Bryant did not go into the glove box and instead started to reach behind a seat, the Respondent feared for his own safety because he suspected that he might be reaching for a weapon. He radioed for assistance, ordered Bryant out of the SUV and handcuffed him.

His supervisors, Sergeant Brown and Lieutenant Rosa, arrived at the scene. The Respondent told them that he smelled the scent of marijuana emanating from the SUV and that he saw a brown bag in the SUV and what appeared to be a torn apart cigar inside the bag which appeared to be cigar ash residue, but it was not enough to be vouchered. His supervisors told him to leave the bag and to leave vehicle where it was parked. The

Respondent testified that he was adamant that the SUV should be removed to the 48 Precinct and searched there because it smelled of marijuana, but his supervisors again told him to leave the bag alone and to lock the SUV and leave the vehicle where it was and go to the 48 station house with Bryant. He did as his supervisors directed.

At the 48 Precinct, he performed a warrant check on Bryant, which produced negative results, and then issued him a summons for Disorderly Conduct which he told him was for “threatening my safety” and for “everything you had done at the scene.” He then released him from custody. He later learned that Bryant had filed a CCRB complaint against both him and his “assistant” who had not even been present at the scene.

On cross-examination, the Respondent testified that he had observed the brown bag in the SUV on the floor behind the driver’s seat. He looked inside the bag and saw what appeared to be only cigar ash, not unsmoked marijuana residue. He acknowledged that at CCRB he had referred to the substance he had observed in the bag as residue. He explained that based on his experience and training, although the cigar ash could have been marijuana residue, he was could not tell for sure because he is not a marijuana expert. He wanted to bring the brown bag and the SUV to the 48 station house so that the ash could be tested and the SUV searched but his supervisors directed him to leave the bag and the SUV at the scene. He testified that he arrested Bryant for Disorderly Conduct because he failed to comply with a lawful order because he had to ask Bryant repeatedly to keep his hands on top of the car and because Bryant was “threatening my safety.” The Respondent acknowledged that he made a mistake in that he did not cite the specific subdivision of Disorderly Conduct that Bryant was being charged with on the summons he wrote out and handed to Bryant.

FINDINGS AND ANALYSISSpecification No. 1

It is charged that the Respondent abused his authority by searching the car Bryant was operating without having a legal basis to do so.

Initially, it must be noted that the SUV that the Respondent observed Bryant standing next to was an unusual looking vehicle in that this truck had been customized and a divider had been installed which separated the front and rear seating areas. Also, Bryant acknowledged that during their interaction outside the SUV, the Respondent told Bryant that he looked suspicious and he expressed a belief that Bryant was acting in a nervous manner in that the Respondent kept asking him, "Are you nervous? Why are you nervous?" Bryant further acknowledged that he told the Respondent that the SUV's registration information was stored behind and underneath a seat rather than inside the glove compartment, the normal place where this document is maintained. Moreover, Bryant testified that when he told the Respondent that he was going to reach behind and underneath a seat, the Respondent "seemed nervous."

Thus, the record establishes that when Bryant re-entered the SUV to get the registration and insurance card, the Respondent was suspicious about whether Bryant was telling the truth about what he was reaching for. Since Bryant would be reaching into an area that was not clearly visible to the Respondent from outside the car, the Respondent had good reason to be careful. Thus, I find that if the Respondent had opened a door of the car to get a clear view of Bryant's hand as it reached behind and underneath the seat, such an action would have been a reasonable and necessary safety precaution to insure that Bryant was not reaching for a weapon hidden under the seat.

Moreover, even if I credit Bryant's version, the Respondent did no more than lean his upper body into the rear seating area and look at the interior of the car. The Respondent did not step into the vehicle, or lift any seats, or reach for anything, or touch anything inside the car.¹ I find that under the circumstances presented here, the limited intrusion of leaning into the rear seating area and looking around was a reasonable safety precaution and did not rise to the level of an illegal search of the vehicle.

The Respondent is found Not Guilty of Specification No. 1.

Specification No. 2

It is charged that the Respondent abused his authority by arresting Bryant without having probable cause to do so.

It is not disputed that the Respondent arrested Bryant for Disorderly Conduct. In People v. Todaro,² the New York Court of Appeals affirmed a conviction for Disorderly Conduct where a member of this Department arrested a man who had questioned the officer's authority to order him to move on and had resisted complying with the officer's order to move on which was issued by the officer several times. In Todaro, the officer had approached the man while he was standing on a busy Manhattan street. The officer asked the man to move on several times. The last time the officer ordered him to move, the man told the officer that he had no right to tell him to move and uttered an expletive. Even though the prosecutor did not offer any evidence that anyone had heard the man's remark or that any pedestrians were obstructed, the Court of Appeals nonetheless held

¹ The Respondent admitted that he looked into the brown bag on the floor but that he did this only after Bryant was under arrest and the Respondent believed that his SUV would be removed to the 48 Precinct.

² 26 NY2d 325, 310 NYS2d 303, 1970 NY LEXIS 1370; analyzed in Legal Bureau Bulletin, Vol. 1, No. 4 (April 15, 1971).

that the defendant's refusal to comply with the officer's order constituted Disorderly Conduct because this offense includes conduct which recklessly risks public inconvenience, annoyance or alarm as well as conduct which actually has that effect.³

The facts in Todaro are not dissimilar to those presented here. The Respondent's interaction with Bryant took place at about 8:45 a.m. on Boston Road, a major Bronx thoroughfare, and Bryant acknowledged that when the Respondent approached him there were people in the area on their way to work. Bryant further acknowledged that at a point when he was inside the car, but two of the car's doors were open enabling passersby to hear him, he had questioned the Respondent's authority by asking him whether he had the right to search the car. Thus, Bryant's own testimony on direct examination establishes that he openly challenged the Respondent's authority in the presence of other civilians.

Also, I credit the Respondent's claim that he had to order Bryant several times to keep his hands on the car since Bryant kept lifting his hands off of the car, because, although Bryant asserted that he was cooperative, such an action by Bryant is consistent with Bryant's testimony that the Respondent had no valid reason to order him to put his hands on the car or to frisk him.

Although the Respondent did not allege that Bryant had uttered an expletive (a factor that was present in Todaro), it must be noted that Todaro involved the appeal of a criminal conviction. Thus, the Court of Appeals held that the record in Todaro established that the defendant had been proven guilty of Disorderly Conduct beyond a

³ It should be noted that the Todaro decision was not overruled by the Court of Appeals' recent decision in People v. Jones, 2007 NY LEXIS 3349 (Nov. 20, 2007) in which the Court addressed the use of the disorderly conduct statute to control public gatherings that cause a public inconvenience. The accusatory instrument that the Court rejected in Jones did not allege that the defendant had questioned the arresting officer's authority or that he had resisted complying with an order issued by the officer.

reasonable doubt. The Respondent here is accused of having arrested Bryant without sufficient probable cause, a lower standard of proof than beyond a reasonable doubt.

Although the Respondent acknowledged that he should have written the specific subdivision of Disorderly Conduct that Bryant was being charged with on the summons he issued to Bryant, and although the Respondent asserted that he had believed that he had probable cause to arrest Bryant for Disorderly Conduct in part because Bryant had created a threat to his personal safety by his action of reaching under the car seat (a non-element of the offense of Disorderly Conduct), these factors are not dispositive of whether the record objectively establishes that the Respondent had insufficient probable cause to arrest Bryant for Disorderly Conduct.

Based on the holding in Todaro, I find that the Department did not meet its burden of proving that the Respondent did not have probable cause to arrest Bryant for Disorderly Conduct.

The Respondent is found Not Guilty of Specification No. 2.

Specification No. 3

It is charged that the Respondent failed “to follow the procedures for processing controlled/substance marijuana weighing less than eight ounces” in that the “Respondent claimed that he recovered a plastic bag in a car containing what appeared to be marijuana, and failed to voucher it.”

The Respondent contended that this charge is time-barred since the misconduct alleged in this Specification occurred on July 28, 2006, and this Specification was served on the Respondent for the first time on February 19, 2009, more than a year after the

applicable 18-month statute of limitations (SOL) had expired.⁴ The Assistant Department Advocate (ADA) argued that this charge is not time-barred because “the facts of Specification 3 arose out of the same set of events as” the misconduct charged under Specification Nos. 1 and 2, Specifications which were served on the Respondent within the 18-month SOL period.

I need not determine the SOL issue because I find that the record shows that the Department failed to meet its burden of proving by a preponderance of the credible evidence that the Respondent is guilty of the charged misconduct.

The ADA stated in her opening statement that “evidence established that Police Officer Treglia recovered a plastic bag in the backseat of Mr. Bryant’s car that had marijuana residue in it.” However, the Department offered no evidence that what the Respondent found inside the car was marijuana residue. On the contrary, Bryant testified that he has never used marijuana, that during the five year period he drove the car he drove it every day and that no one he drove in the car had ever smoked marijuana inside the car. Thus, based on the testimony of the Department’s only witness, there was no marijuana residue inside the car. The ADA argued in her summation that Bryant testified truthfully at this trial.

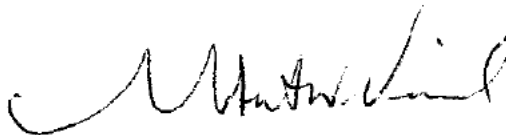
Since the ADA did not call any witnesses other than Bryant, the Department’s proof that the Respondent committed the charged misconduct consisted solely of statements the Respondent made at his CCRB interview which were placed in the record based on the responses the Respondent provided to the ADA’s questions on cross-examination. The Respondent acknowledged that at his CCRB interview he had referred to what he saw in the brown bag as residue and that he told his CCRB interviewers that

⁴ The Department did not contend that this charge falls within the “crime exception” to the 18-month SOL.

he did not voucher it because in his training and experience there was not enough substance to verify that it was marijuana. However, during his trial testimony, the Respondent asserted that two supervisors who responded to the scene ordered him to leave the bag and the SUV at the scene. Although the ADA argued that this claim should be rejected, the Department did not call either of the supervisors the Respondent named. As a result, the record contains no testimony or other evidence to refute the Respondent's testimonial claim.

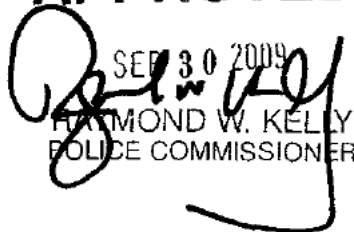
I find that the Department failed to meet its burden of proving by a preponderance of the credible evidence that the Respondent is guilty of the charged misconduct. The Respondent is found Not Guilty of Specification No. 3.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner – Trials

APPROVED



SEP 30 2009
RAYMOND W. KELLY
POLICE COMMISSIONER